

**THE COMMONWEALTH OF MASSACHUSETTS
TOWN OF WESTHAMPTON
ANNUAL TOWN MEETING WARRANT**

HAMPSHIRE SS.

To any of the Constables of the Town of Westhampton in the County of Hampshire

GREETING.

IN THE NAME OF The Commonwealth of Massachusetts, you are hereby directed to notify and warn the inhabitants of said Town, qualified to vote in elections and in Town affairs, to meet at the **TOWN HALL, 1 SOUTH ROAD** in said **WESTHAMPTON** on **SATURDAY the THIRTEENTH day of MAY 2023 at 9:00 o'clock in the morning**, and there to act on the following articles:

ARTICLE 1: To hear and act on all reports presented at said meeting.

ARTICLE 2: To see if the town will amend the general bylaw of the Town of Westhampton by adding section 4-5-2 (i), as follows:
(i) One Alternate Member of the Planning Board, in accordance with Section 81A of Chapter 41 of the General Laws

or take any other action relative thereto.

ARTICLE 3: To see if the Town will vote, pursuant to Chapter 164, Section 134 of the Massachusetts General Laws, to grant the Board of Selectmen/Select Board the authority to research, develop and participate in a contract, or contracts, to aggregate the electricity load of residents and businesses in the Town and for other related services, independently, or in joint action with other municipalities, retaining the right of individual residents and businesses to opt-out of the aggregation, or take any other action relative thereto.

ARTICLE 4: To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for **the payment of unpaid bills of previous years**, incurred by the departments, boards and officers of the Town of Westhampton, or take any other action relative thereto.

ARTICLE 5: To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for **expenses relative to the Snow Removal Account for Fiscal Year 2023**, or take any action in relation thereto.

ARTICLE 6: To see if the Town will vote to authorize the Selectboard to **take care of the highways**, including entering into contracts, and accepting any money from the Commonwealth of Massachusetts or other sources.

ARTICLE 7: To see if the Town will vote to authorize the Selectboard to **apply for and expend grants** from federal or state programs.

ARTICLE 8: To see if the town will vote to authorize or re-authorize the following **Revolving Funds** for the purposes and amounts as listed below.

FY2024 – REVOLVING FUNDS

FUND	PURPOSE	SOURCE OF FUNDS	MAX AMOUNT
Fire Department	Materials, supplies and training	Inspection Fees	\$2,500.00
Westhampton Cemetery	Cemetery upkeep, maintenance and grounds-keeping	Fees Charged	\$6,000.00
Police Dept / School Resource Officer	School Resource Officer (SRO) policing activities and materials	Fees paid for services	\$8,000.00

- ARTICLE 9:** To vote in compliance with Section 108, Chapter 41 G.L., which requires that salaries of elected officials be fixed by vote of the Town, and to raise and appropriate, or otherwise provide, a sum of money for **Salaries and Compensation** to be as of July 1, 2022, or take any other action relative thereto.
- ARTICLE 10:** To see if the Town will vote to raise and appropriate, or otherwise provide, a sum of money for charges relative to **General Government**, or take any other action in relation thereto.
- ARTICLE 11:** To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to **Fire, Police and EMS services**, or take any other action in relation thereto.
- ARTICLE 12:** To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to **Ambulance Services**, or take any other action in relation thereto.
- ARTICLE 13:** To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to **Building Inspections and Other Public Safety Services**, or take any other action in relation thereto.
- ARTICLE 14:** To see if the Town will vote to raise and appropriate, or otherwise provide, a sum of money for charges relative to the **Westhampton Elementary School**, or take any other action relative thereto.
- ARTICLE 15:** To see if the Town will vote to raise and appropriate, or otherwise provide, a sum of money for charges relative to **Hampshire Regional School**, or take any other action relative thereto.
- ARTICLE 16:** To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to **Vocational School Tuition**, or take any other action relative thereto.
- ARTICLE 17:** To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to **Vocational School Transportation**, or take any other action relative thereto.
- ARTICLE 18:** To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to **Road and Highway Maintenance and Facilities**, or take any other action relative thereto.
- ARTICLE 19:** To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for **Snow Removal**, or take any other action relative thereto.
- ARTICLE 20:** To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for the **Operation of the Transfer Station and Maintenance of the Westhampton Landfill**, or take any other action relative thereto.
- ARTICLE 21:** To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to the **Operation and Maintenance of the Westhampton Cemetery**, or take any other action relative thereto.
- ARTICLE 22:** To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to **Public Health**, or take any other action relative thereto.
- ARTICLE 23:** To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to the **Westhampton Council on Aging**, or take any other action relative thereto.

- ARTICLE 24:** To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to **Veterans Benefits and Services**, or take any other action relative thereto.
- ARTICLE 25:** To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to the **Westhampton Public Library**, or take any other action in relation thereto.
- ARTICLE 26:** To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to **Culture and Recreation Activities**, or take any other action in relation thereto.
- ARTICLE 27:** To see if the Town will vote to raise and appropriate, or otherwise provide a sum of money for charges relative to **Employment Benefits, Insurance and other Mandated Expenses**, or take any other action in relation thereto.
- ARTICLE 28:** To see if the Town will vote to appropriate a sum of money as may be certified from available funds, due to the Town as **Chapter 90 Highway Funds from the Transportation Bond Issue**, or take any other action in relation thereto.
- ARTICLE 29:** To see if the Town will vote to appropriate, borrow, or transfer from available funds a sum of money for an **Actuary Audit of Other Post-Employment Benefits (OPEB)**, or take any other action in relation thereto.
- ARTICLE 30:** To see if the Town will transfer from Free Cash the sum of \$8,815.82, which corresponds to the sum received by the Town from two nationwide settlement agreements that resolve all opioid litigation brought by state and local governments against the three largest drug distributors, McKesson, Cardinal Health and AmerisourceBergen (“Distributors”), and one manufacturer, Janssen Pharmaceuticals, Inc. (“Janssen”), which shall be expended solely **for the purposes of opioid abuse, treatment and prevention**, at the direction of the Westhampton Police Chief in consultation with the Westhampton Fire Chief, Westhampton Emergency Management Coordinator, and Director of the Foothills Health District, or take any other action relative thereto.
- ARTICLE 31:** To see if the Town will vote to appropriate, borrow, or transfer from available funds a sum of money for the purchase of a **Dump Truck with material spreader and wing plow** for use by the Westhampton Highway Department, with requested and necessary upfit equipment and additions, or take any other action relative thereto.
- ARTICLE 32:** To see if the Town will vote to appropriate, borrow, or transfer from available funds a sum of money for the purchase and installation of an access control, fire detection, monitoring and alarm system at the Town Hall, or take any other action relative thereto.
- ARTICLE 33:** To see if the Town will vote to appropriate, borrow, or transfer from available funds a sum of money for the maintenance, removal, and replacement of certain diseased or damaged shade trees along Westhampton public rights of way, or take any other action relative thereto.
- ARTICLE 34:** To see if the town will vote to transfer a sum of money from Free Cash to the Clapp Fund for the support of the Blacksmith Shop; said sum to be equal to the proceeds from the auction of a 1947 Jeep Willys, originally donated to the Westhampton Historic Commission, or take any other action relative thereto.
- ARTICLE 35:** To see if the Town will vote to transfer a sum of money from Free Cash to the **General Stabilization Fund**, or take any action relative thereto.
- ARTICLE 36:** To see if the Town will vote to transfer from Free Cash, or other available funds, a sum of money to **Balance the Budget and to Reduce the Tax Rate** for the Fiscal Year 2023, or take any other action relative thereto.

ARTICLE 37: To see if the Town will vote to adopt a resolution as follows:

Resolution in Support of Changing the State Flag & Seal of Massachusetts

Whereas the history of the Commonwealth of Massachusetts is replete with instances of conflict between the European Colonists and the Native Nations of the region, who first extended the hand of friendship to the Colonists on their shores in 1620, and helped them to survive starvation during the settlers' first winters on their land;

Whereas members of the Native Nation for whom the Commonwealth of Massachusetts is named were ambushed and killed by Myles Standish, first commander of the Plymouth Colony, at Wessagussett (now Weymouth) in April of 1623, barely two years after the Pilgrims arrived;

Whereas the Colonial broadsword held by a white hand above the head of the Indigenous person on the Massachusetts Flag and Seal is modeled after Myles Standish's own broadsword, borrowed for that purpose from the Pilgrim Hall in Plymouth by the illustrator Edmund Garrett in 1884;

Whereas the belt binding the Native's cloak on the Flag and Seal is modeled after a belt worn by Metacomet, known to the English as King Philip, who was among the Indigenous leaders that resorted to a mutually destructive war in 1675-76 in defense of Native lands against Colonial encroachment;

Whereas the proportions of the body of the Indigenous person on the Flag and Seal were taken from the skeleton of an Indigenous person unearthed in Winthrop, the bow modeled after a bow taken from an Indigenous man shot and killed by a colonist in Sudbury in 1665, and the facial features taken from a photograph of an Ojibwe chief from Great Falls, Montana, considered by the illustrator to be a "fine specimen of an Indian," though not from Massachusetts;

Whereas the history of relations between Massachusetts since Colonial times and the Native Nations who continue to live within its borders includes the forced internment of thousands of so-called "praying Indians" on Deer Island, in Boston Harbor, where they died by the hundreds of exposure in the winter of 1675, the enslavement of Indigenous people in Boston, Bermuda, and the Caribbean Islands, the offering of 40 pounds sterling as bounty for the scalps of Indigenous men, women and children in Massachusetts beginning in 1686, increased to 100 pounds sterling for the scalps of Indigenous adult males by 1772, half that amount for Indigenous women and children;

Whereas Indigenous people were legally prohibited from even stepping foot into Boston from 1675 until 2004, when that Colonial law was finally repealed;

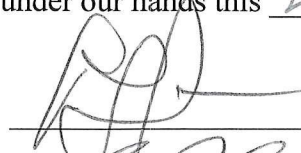
Whereas the 400th anniversary of the landing of the Colonists at Plymouth Plantation, which gave rise to the long chain of genocidal wars and deliberate government policies of cultural destruction against Native Nations of this continent, occurred in the year 2020, affording every citizen of the Commonwealth a chance to reflect upon this history and come to an appreciation of the need for better relations between the descendants of the Colonial immigrants and the Native Nations of the Commonwealth;

Whereas the land area now known as the Town of Westhampton, shares a rich Native history with tribal Nations such as the Norwottuck or Nonotuck, who inhabited this area long before the first colonial settlers arrived, in 1762;

Now, therefore, BE IT RESOLVED that the Town of Westhampton hereby adopts this resolution in support of the work of the Special Commission on the Official Seal and Motto of the Commonwealth, established by a Resolve of the General Court in 2021 and appointed by the Governor to recommend changes to the current flag and seal of Massachusetts, and in support of a new flag and seal for the Commonwealth that may better reflect our aspirations for harmonious and respectful relations between all people who now call Massachusetts home. The town clerk shall forward a copy of this resolution to Sen. Paul Mark and Rep. Lindsay Sabadosa, with the request that they continue their strong support for the work of the aforementioned Special Commission and advocate for a new flag and seal for the Commonwealth.

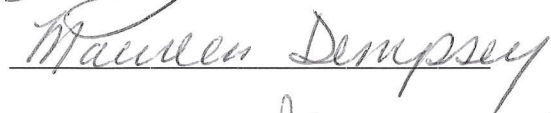
HEREOF FAIL NOT, and make due return of this Warrant, with your doings thereon, to the Town Clerk, at the time and place of meeting, as aforesaid.

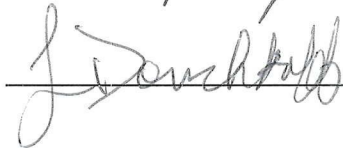
Given under our hands this 24th day of April, 2023.





Selectboard of Westhampton



A true copy, ATTEST:  _____ Constable of Westhampton

HAMPSHIRE, ss.

PURSUANT TO THE WITHIN WARRANT, I have notified and warned the inhabitants of the Town of Westhampton by posting up attested copies of the same at the Town Hall, Town Clerk's Office, Westhampton Public Library and Outlook Farm, at least seven days before the date of the meeting, as within directed.

Return of Service:  _____
Constable

5/3/23
Date